

| #   | Case Name                                              | Tentative                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |
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|     |                                                        | <p>Section 1033.5(a)(10)(A) allows for the award of attorney's fees when authorized by contract.</p> <p>"Thus, there are two requirements before a motion for an award of postjudgment attorney fees may be awarded as costs: (1) the fees must have been incurred to 'enforce' a judgment; and (2) the underlying judgment had to include an award for attorney fees pursuant to Code of Civil Procedure section 1033.5, subdivision (a)(10)(A), which provides that attorney fees may be awarded when authorized by contract." <i>Nash v. Aprea</i> (2023) 96 Cal. App. 5<sup>th</sup> 21, 28 (citations omitted).</p> <p>Here, the parties arbitrated their dispute based on a clause in their partnership agreement. (ROA 250, Exh. A). The parties further agreed, pursuant to the rules of the arbitral forum, that the arbitrator would determine what attorney's fees to award to the prevailing party in that dispute.</p> <p>That is, the arbitration arose from contract. The judgment includes an award of attorney's fees. (ROA 78). As a result, petitioner is entitled to reasonable attorney's fees expended in enforcing the judgment.</p> <p>The court has reviewed the submittals reflecting the hours sought. The court has reduced the fee request by excluding time spent on activity related to the appointment of a receiver, as that motion was filed after the notice of appeal had been filed which divested this court of jurisdiction. The court has further reduced certain hours based on inefficiencies reflected in the entries. The fees excluded by the court were not expended in enforcing the judgment.</p> <p>The court awards petitioner \$56,203.14 in reasonable attorney's fees and costs.</p> <p>The court declines to award a multiplier.</p> <p>Petitioner shall give notice of this ruling.</p> |
| 58. |                                                        |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |
| 59. | <p>TALG, LTD.<br/>v. Ton</p> <p>2026-<br/>01552440</p> | <p>Defendant Alessandria Jones Ton's, in pro per, Special Motion to Strike is DENIED.</p> <p><b><u>Procedural Issues</u></b></p> <p>Plaintiff objects to the form of the motion arguing that it is not in conformance with Rule 3.1113(b), which provides that "[a] memorandum must contain a statement of facts, a concise statement of the law, evidence and arguments relied on, and</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |

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|   |           | <p>a discussion of the statutes, cases, and textbooks cited in support of the position advanced.” (CRC, Rule 3.1113(b).) Defendant’s case citation is also not in conformance with the Rules of Court as it provides only the case name as opposed to the official report volume and page number and year of decision.</p> <p>Additionally, there is no proof of service filed with the court for the motion or RJN.</p> <p>While Defendant’s motion may suffer from some procedural flaws, the motion provides enough information and authority in which to evaluate her argument, as evidenced by Plaintiff’s opposition to the merits of the motion. Moreover, by responding to the merits of the motion, Plaintiff has waived any argument regarding lack of notice.</p> <p><u>Defendant’s Request for Judicial Notice</u> is DENIED. The court cannot determine whether they qualify under Evidence Code §§ 452-453 as no exhibits were attached to the notice.</p> <p><b><u>Legal Standard Generally on an Anti-SLAPP Motion</u></b></p> <p>On or about December 8, 2025, Defendant published the challenged statements in writing on Plaintiff’s public Yelp business page. Approximately one month later, Defendant affirmatively republished part of the same content by uploading a screenshot of the Yelp Review to the “Photos &amp; Videos” section of the Firm’s Yelp page.</p> <p>On March 3, 2026, Plaintiff filed the instant complaint alleging a cause of action for defamation and trade libel.</p> <p>Defendant now moves to strike the Complaint under California’s anti-SLAPP statute.</p> <p>Code of Civil Procedure section 425.16 provides: “A cause of action against a person arising from any act of that person in furtherance of the person’s right of petition or free speech under the United States Constitution or the California Constitution in connection with a public issue shall be subject to a special motion to strike, unless the court determines that the plaintiff has established that there is a probability that the plaintiff will prevail on the claim.” (Code Civ. Proc., § 425.16, subd. (b)(1).)</p> <p>“Section 425.16 posits ... a two-step process for determining whether an action is a [strategic lawsuit against public participation]. First, the court decides whether the defendant has made a threshold showing that the challenged cause of action is one arising from protected activity.... If the court</p> |

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|   |           | <p>finds that such a showing has been made, it must then determine whether the plaintiff has demonstrated a probability of prevailing on the claim.” (<i>Navellier v. Sletten</i> (2002) 29 Cal.4th 82, 88.) “Only a cause of action that satisfies both prongs of the anti-SLAPP statute – i.e., that arises from protected speech or petitioning and lacks even minimal merit – is a SLAPP, subject to being stricken under the statute.” (<i>Id.</i> at 89.)</p> <p><b>1. <u>Step One – Protected Activity</u></b></p> <p>“The sole inquiry under the first prong of the anti-SLAPP statute is whether the plaintiff’s claims arise from protected speech or petitioning activity. [Citation.] Our focus is on the principal thrust or gravamen of the causes of action, <i>i.e.</i>, the allegedly wrongful and injury-producing conduct that provides the foundation for the claims.” (<i>Castleman v. Sagaser</i> (2013) 216 Cal.App.4th 481, 490–491.)</p> <p>“At the first step, the moving defendant bears the burden of identifying all allegations of protected activity, and the claims for relief supported by them. . . If the court determines that relief is sought based on allegations arising from activity protected by the statute, the second step is reached.” (<i>Baral v. Schnitt</i> (2016) 1 Cal.5th 376, 396.)</p> <p>There are four categories of protected speech for an anti-SLAPP motion (Code Civ. Proc., § 425.16(e)):</p> <ol style="list-style-type: none"> <li>1. Statements made before a legislative, executive, or judicial proceeding, or any other official proceeding authorized by law;</li> <li>2. Statements made in connection with an issue under consideration or review by a legislative, executive, or judicial body, or any other official proceeding authorized by law;</li> <li>3. Statements made in a place open to the public or a public forum in connection with an issue of public interest;</li> <li>4. Any other conduct in furtherance of the exercise of the constitutional right of petition or the constitutional right of free speech in connection with a public issue or an issue of public interest.</li> </ol> <p>Defendant’s motion appears to be based on the third category.</p> <p>“For purposes of the third category in subdivision (e) of section 425.16, a “public forum” is traditionally defined as a place that is open to the public where information is freely exchanged.’ [Citation.]” (<i>Lee v. Silveira</i> (2016) 6 Cal.App.5th 527, 539, citing <i>Damon v. Ocean Hills Journalism Club</i> (2000)</p> |

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|   |           | <p>85 Cal.App.4th 468, 475.) Yelp.com is unquestionably a "public form." (<i>Wong v. Tai Jing</i> (2010) 189 Cal.App.4th 1354, 1367.)</p> <p>Thus, the pertinent question here is whether Defendant's statements were made "in connection with an issue of public interest." (Code Civ. Proc., § 425.16, subd. (e)(3); see <i>id.</i>, § 425.16, subd. (e)(4).) "Not surprisingly, we have struggled with the question of what makes something an issue of public interest." (<i>Rand Resources, LLC v. City of Carson</i> (2019) 6 Cal.5th 610, 621 (<i>Rand</i>).)</p> <p>Courts have recognized three categories of statements or conduct that qualify as "public interest": (1) statements or conduct that concern a person or entity in the public eye; (2) statements or conduct that could directly affect a large number of persons beyond the direct participants; and (3) statements or conduct involving a topic of widespread interest. (<i>Rand, supra</i>, 6 Cal.5th at p. 621; <i>Woodhill Ventures, LLC v. Yang</i> (2021) 68 Cal.App.5th 624, 631-632.)</p> <p>The caselaw has come out everywhere on the issue of whether a consumer review constitutes a statement made in connection with "an issue of public interest." (See, e.g., <i>Yang v. Tenet Healthcare Inc.</i> (2020) 48 Cal.App.5th 939, 947 (<i>Yang</i>) [whether a local healthcare provider's qualifications, competence, professional ethics are deficient is a public issue]; <i>Healthsmart Pacific, Inc. v. Kabateck</i> (2016) 7 Cal.App.5th 416, 429 (<i>Healthsmart Pacific</i>) ["members of the public, as consumers of medical services, have an interest in being informed of issues concerning particular doctors and health care facilities"]; <i>Dual Diagnosis Treatment Center, Inc. v. Buschel</i> (2016) 6 Cal.App.5th 1098, 1105 ["The licensing status of a single rehabilitation facility is not of 'widespread, public interest'"].) However, the critical distinction between these cases often turns on whether the focus of the speech concerns matters that go beyond the speaker's particular interactions with the business or a private dispute. (See <i>Woodhill, supra</i>, 68 Cal.App.5th at p. 634-636 [distinguishing cases, noting "[d]ecisions generally have extended protection, however, only when the 'consumer information' goes beyond recounting a one-time dispute between a buyer and a seller"].)</p> <p>Here, the December 8, 2025, Yelp review goes beyond a private one-time interaction with Plaintiff or Defendant's dissatisfaction with Plaintiff's services. It warns the general public of defendant's professional competence and ethics as</p> |

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|   |           | <p>an attorney. (Complaint, Ex. 3) It claims an attorney does not sympathize with women, will not show interest in your case, acts like a bully and is very unprofessional. Defendant claims Plaintiff colluded with her ex-husband's attorney, abandoned her and dropped her as a client, and left her traumatized. Defendant also warns the public not to waste their time hiring Talg law firm.</p> <p>"The public interest requirement of [the anti-SLAPP statute] must be ` "construed broadly" so as to encourage participation by all segments of our society in vigorous public debate related to issues of public interest.' [Citation.] The Legislature inserted the 'broad construction' provision out of concern that judicial decisions were construing that element of the statute too narrowly." (<i>Gilbert v. Sykes</i> (2007) 147 Cal.App.4th 13, 23; Code Civ. Proc., § 425.16, subd. (a) ["The Legislature finds and declares that it is in the public interest to encourage continued participation in matters of public significance, and that this participation should not be chilled through abuse of the judicial process. To this end, this section shall be construed broadly."].) A licensed medical provider's substandard care is a matter of public interest, and statements that warn of such care should be protected "so as to encourage participation by all segments of our society in vigorous public debate related" to such care. (See <i>ibid.</i>)</p> <p>While most of the post relates to Defendant's personal dissatisfaction with Plaintiff's services, her statements claiming Plaintiff provided substandard services and warning the public of such conduct makes this a public interest. Accordingly, Defendant has met her burden to show the complaint arises from protected activity.</p> <p><b>2. Step Two - Probability Of Prevailing</b></p> <p>"If the defendant makes the required showing, the burden shifts to the plaintiff to demonstrate the merit of the claim by establishing a probability of success. We have described this second step as a summary-judgment-like procedure. The court does not weigh evidence or resolve conflicting factual claims. Its inquiry is limited to whether the plaintiff has stated a legally sufficient claim and made a prima facie factual showing sufficient to sustain a favorable judgment. It accepts the plaintiff's evidence as true, and evaluates the defendant's showing only to determine if it defeats the plaintiff's claim as a matter of law. Claims with the requisite minimal merit may proceed." (<i>Baral</i> 1 Cal.5th at 384-85 (cleaned up).)</p> |

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|   |           | <p>The Complaint alleges causes of action for defamation and trade libel.</p> <p style="text-align: center;"><b>Defamation</b></p> <p>"The elements of a defamation claim are (1) a publication that is (2) false, (3) defamatory, (4) unprivileged, and (5) has a natural tendency to injure or causes special damage." (<i>Sanders v. Walsh</i> (2013) 219 Cal.App.4th 855, 862 [citations omitted].)</p> <p>"The sine qua non of recovery for defamation ... is the existence of falsehood. Because the statement must contain a provable falsehood, courts distinguish between statements of fact and statements of opinion for purposes of defamation liability. Although statements of fact may be actionable as libel, statements of opinion are constitutionally protected." (<i>McGarry v. University of San Diego</i> (2007) 154 Cal.App.4th 97, 112, (<i>McGarry</i>) [cleaned up].) "That does not mean that statements of opinion enjoy blanket protection. On the contrary, where an expression of opinion implies a false assertion of fact, the opinion can constitute actionable defamation. The critical question is not whether a statement is fact or opinion, but whether a reasonable fact finder could conclude the published statement declares or implies a provably false assertion of fact." (<i>Wong, supra</i>, 189 Cal.App.4th at p. 1370 [cleaned up].) Therefore, statements that cannot reasonably be interpreted as stating actual facts about an individual or entity that are provably false cannot form the basis of a defamation action. (<i>Ferlauto v. Hamsher</i> (1999) 74 Cal.App.4th 1394, 1401.) Accordingly, rhetorical hyperbole, vigorous epithets, imaginative expressions of contempt, and loose, figurative language are constitutionally protected. (<i>Ibid.</i>)</p> <p>"An opinion is not actionable if it discloses all the statements of fact on which the opinion is based and those statements are true. An opinion is actionable if it discloses all the statements of fact on which the opinion is based and those statements are false." (<i>Integrated Healthcare Holdings, Inc. v. Fitzgibbons</i> (2006) 140 Cal.App.4th 515, 527 (<i>Integrated Healthcare</i>) [cleaned up].)</p> <p>"In determining whether the disputed statement communicates or implies a provably false assertion of fact, we look at the totality of the circumstances, looking first to the language of the statement and whether it was understood in a defamatory sense, and then considering the context in which the statement was made. [Citation.] We focus not on the literal truth or falsity of each word in a statement, but rather on ' " 'whether the "gist or sting" of the statement is true or false, benign or defamatory, in substance.' " ' [Citations.] We also consider whether the</p> |

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|   |           | <p>reasonable or “average” reader would so interpret the material. [Citations.] The “average reader” is a reasonable member of the audience to which the material was originally addressed.’ ” (<i>Edward v. Ellis</i> (2021) 72 Cal.App.5th 780, 790-791.)</p> <p>Statements made in the Yelp review by Defendant are as follows: 1) Plaintiff colluded with opposing counsel in forcing Defendant and her children out of the house for it to be sold; 2) Plaintiff abandoned Defendant for six months; and 3) recorded a lien for nothing.</p> <p>As to the allegation re collusion with her ex-husband’s attorney in forcing Defendant and her children out of the house, Plaintiff points out that Defendant’s Motion identifies her address as 4248 Cedral Street, Acton, California, the same property identified in the Stipulation and Order concerning the community-property residence that she allegedly was kicked out of. Such evidence demonstrates that the statement could be provably false.</p> <p>Regarding Defendant’s allegation that Plaintiff “abandoned” her for six months, Plaintiff directs the court to the itemized bills attached to the Complaint as Exhibit 2, which reflect work being performed during the relevant timeframe. Therefore, Defendant’s statement that she was abandoned may be provably false.</p> <p>The Yelp review also states: “I was convinced by her that she will keep fighting for me and put a lien on my house for \$50K for NOTHING.” (Complaint, Ex. 3.) Plaintiff submits a Family Law Attorney’s Real Property Lien executed by Defendant to demonstrate the lien was to secure payment of Plaintiff’s bills arising from legal services, and not for “nothing.” Defendant agreed to the lien for payment of Plaintiff’s legal fees. This is sufficient evidence to demonstrate the statement is provably false.</p> <p>Based on the foregoing, Plaintiff has established a probability of prevailing on its defamation claim.</p> <p style="text-align: center;"><b>Trade Libel</b></p> <p>Trade libel is the intentional disparagement of the quality of services of a business that results in pecuniary damages to the plaintiff. (<i>City of Costa Mesa v. D’Alessio Investments, LLC</i>, (2013) 214 Cal.App.4th 358, 375-76.) In order to demonstrate trade libel, a plaintiff must show three things: (1) there was a false statement of fact; (2) the statement was made with actual malice, the knowledge the statement was false or with reckless disregard of whether it was true or false;</p> |





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